Protex AI

EXHIBIT A | Protex AI Data Processing Addendum

This Data Processing Addendum ("**DPA**") is supplementary to and shall be construed in accordance with the Agreement.

1. Definitions

1.1. Capitalized terms not otherwise defined in the Agreement shall have the following meanings:

"**Authority**" means for Personal Data originating in: (a) the EEA, the European Commission; (b) the UK, the Information Commissioner's Office (or its successor); and (c) anywhere else, the appropriate data protection authority of competent jurisdiction pursuant to the Data Protection Laws.

"**Client Personal Data**" means the Personal Data that is shared by the Client with Protex AI in connection with the Offering.

"**Controller**" has the meaning given to it in the Data Protection Laws.

"**Data Protection Impact Assessment**" has the meaning given to it in the Data Protection Laws.

"**Data Protection Laws**" means all data protection and privacy laws, including guidance issued by any applicable data protection authority, applicable to any Personal Data, as may be amended or replaced from time to time, including without limitation: (a) in the European Union, the General Data Protection Regulation 2016/679 (the "**EU GDPR**") and the Privacy and Electronic Communications Directive 2002/58/EC (as the same may be superseded by the Regulation on Privacy and Electronic Communications); (b) in the UK, the Data Protection Act 2018 as amended and the "**UK GDPR**" as that term is defined in the Act; and (c) in the United States of America, the California Consumer Privacy Act, as amended by the California Privacy Rights Act 2020.

"**Data Subject**" has the meaning given to it in the Data Protection Laws.

"**EEA**" means the European Economic Area.

"**EU Controller-to-Processor Clauses**" means the standard contractual clauses between controllers and processors for data transfers to Third Countries, as approved by the European Commission Implementing Decision (EU) 2021/914 of 4 June 2021, available at www.protex.ai/legal (Standard Contractual Clauses).

"**EU Processor-to-Processor Clauses**" means the standard contractual clauses between processors for data transfers to Third Countries, as approved by the European Commission Implementing Decision (EU) 2021/914 of 4 June 2021, available at www.protex.ai/legal (Standard Contractual Clauses).

"**GDPR Laws**" means the EU GDPR and UK GDPR, collectively.

"**International Data Transfer Addendum**" or "**IDTA**" means the International Data Transfer Addendum to the EU Processor-to-Processor Clauses and the EU Controller-to-Processor Clauses as approved by the Information Commissioner's Office of the United Kingdom under section 119A(1) of the Data Protection Act 2018, available at www.protex.ai/legal (Standard Contractual Clauses).

"**Personal Data**" has the meaning given to it in the Data Protection Laws.

"**Personal Data Breach**" means any breach of security or other action or inaction leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Personal Data by Protex AI, its affiliates, sub-processors, or any other identified or unidentified third party. Any other identified or unidentified third party does not include Client Affiliates or Outsource Providers.

"**Processor**" has the meaning given to it in the Data Protection Laws.

"**Standard Contractual Clauses**" means the EU Processor-to-Processor Clauses, EU Controller-to-Processor Clauses and the International Data Transfer Addendum, as applicable, all available at www.protex.ai/legal (Standard Contractual Clauses).

"**Third Country**" means in respect of Personal Data originating in: (a) the EEA, a country outside of the EEA not recognized by the European Commission as providing an adequate level of protection for Personal Data (as described in the EU GDPR); and (b) the UK, a country outside the UK not recognized by the Information Commissioner's Office as providing an adequate level of protection for Personal Data (as described in the UK GDPR).

"**TOMs**" means the technical and organizational measures contained in Schedule 1.

2. Data Processing

2.1. Scope and Roles. This DPA applies when Protex AI processes Client Personal Data under the Agreement. In this context, Client is the Controller and Protex AI is the Processor. Each party agrees that it will comply with all Data Protection Laws in exercising its rights and performing its obligations under this Agreement, as such laws apply to a Controller and Processor respectively.

2.2. Details of the Processing.

(a) **Subject matter:** The subject matter for the processing under this DPA is Client Personal Data.

(b) **Duration:** Client Personal Data will be processed under this DPA for the Term and in accordance with the Agreement.

(c) **Nature and purpose:** Protex AI will process Client Personal Data to provide, operate and maintain the Offering.

(d) **Categories of Data Subject:** The categories of Data Subject, whose Personal Data may be processed by Protex AI as Client Personal Data include: (i) individuals at or who visit a Client Site covered by Client-side cameras connected to the Protex AI Offering, which may include Client's employees, temporary workers, agents and volunteers and independent contractors engaged by the Client ("**Client Site Visitors**"); and (ii) users of the Protex AI Offering, which may include Client's employees and those of its Affiliates.

(e) **Types of Personal Data:** The types of Personal Data that Protex AI may process include: (i) user account information, such as user full names, job title, phone numbers, business email addresses, account information, authentication information, usage data (*e.g.,* features used and actions taken), information collected via support and Protex Intelligence functions (including support emails, user chat, responses and feedback); (ii) user device information, such as device used, browser and browser version, operating system and version, IP address, and geo-location data; (iii) video / image data of Client's Site Visitors; and (iv) any other Personal Data contained in Client Personal Data submitted through the Offering by Client.

3. Instructions

3.1. Documented Instructions. The parties agree that this DPA and the Agreement (including any instructions provided by Client to Protex AI required for or related to the Offering) constitute Client's documented instructions regarding Protex AI's processing of Client Personal Data ("**Documented Instructions**").

3.2. Compliance with Documented Instructions. Protex AI will only process Client Personal Data in accordance with Documented Instructions unless required to do so by applicable law, in which case Protex AI will, to the extent legally permissible, inform Client of that legal requirement before processing. Protex AI shall promptly inform Client if, in Protex AI's opinion, an instruction from Client infringes the Data Protection Laws. Client acknowledges that any such opinion is not legal advice and Client shall not rely on it.

3.3. Change of Scope. If the Documented Instructions require Protex AI to perform actions that go beyond its obligations under this DPA or the scope of work for the Offering set out in the Agreement, Protex AI shall inform the Client and require the Client to provide different Documented Instructions, the carrying out of which will fall within the scope of the Offering or within the scope of Protex AI's obligations under this DPA.

4. Confidentiality

4.1. Personnel. Protex AI will take reasonable steps to ensure the reliability of any persons authorized to process any Client Personal Data and shall ensure that all such persons have committed themselves to written obligations of confidentiality.

5. Security

5.1. Technical and Organizational Measures. Considering the nature, scope, context and purposes of processing, Protex AI has implemented and will maintain for the Term, the administrative, physical, technical and organizational measures as set out in the TOMs (as attached at Schedule 1) to protect any Client Personal Data accessed or processed by it against unauthorized or unlawful processing or accidental loss, destruction, damage or disclosure.

5.2. Client Approval of TOMs. The parties agree that for the purposes of processing Client Personal Data under this DPA and the Agreement, the measures contained within the TOMs are appropriate, given the nature of the data to be processed and the harm that might result from such unauthorized or unlawful processing or accidental loss, destruction, disclosure, access or damage.

5.3. Information Security Management System. Protex AI has been certified as operating an Information Security Management System which complies with the requirements of ISO 27001 (ISO/IEC 27001:2022), and Protex AI will continue to maintain such certification (or equivalent) for the duration of the Term.

6. Sub-Processing

6.1. Consent Needed. Subject to Section 6.2 (Authorization of Sub-Processors), Protex AI shall not without the prior written consent of Client, engage any sub-processors for the processing of Client Personal Data under this Agreement.

6.2. Authorization of Sub-Processors. Client consents to and authorizes: (a) Protex AI's Affiliates, and (b) the parties listed in Schedule 2 (Approved Sub-Processors) to act as sub-processors for Protex AI in the provision of the Offering and on terms materially equivalent to those contained in this DPA ("**Approved Sub-Processor**s"). Protex AI shall be fully liable for any breach by the sub-processors of any of the obligations contained in this DPA.

7. Cross-Border Transfers

7.1. Consent to Transfer Required. Subject to Section 7.2 (Cloud Provider), if Client Personal Data originates in: (a) the EEA, or (b) the UK, Protex AI will not transfer such Client Personal Data to a Third Country, without the prior written consent of Client and not without procuring provision of adequate safeguards (as defined by relevant Authority from time to time) in accordance with applicable Data Protection Laws.

7.2. Cloud Provider; Sub-Processors. Client Personal Data may be hosted by the Cloud Provider in the Hosted Location agreed by the parties and may be transferred to the Approved Sub-Processors located in a Third Country. Client acknowledges and consents to such processing of Client Personal Data outside of: (a) the EEA, and (b) the UK, solely and to the extent necessary for Protex AI to provide the Offering and for which purposes the relevant Standard Contractual Clauses shall apply.

7.3. Standard Contractual Clauses - Client is Data Exporter. When Client is acting as a Controller and transfers Client Personal Data originating in the:

(a) EEA, to a Processor located in a Third Country, the EU Controller-to-Processor Clauses will apply; and

(b) UK, to a Processor located in a Third Country, the Information Commissioner's Office of the United Kingdom's International Data Transfer Addendum will apply.

7.4. Standard Contractual Clauses - Protex AI is Data Exporter. When Protex AI is acting as a Processor and transfers Client Personal Data originating in the:

(a) EEA, to a Processor located in a Third Country, the EU Processor-to-Processor Clauses will apply; and

(b) UK, to a Processor located in a Third Country, the Information Commissioner's Office of the United Kingdom's International Data Transfer Addendum will apply.

7.5. Change in Law. The parties agree that Protex AI, may at its sole discretion, update and or entirely replace paragraphs 7.3(b) and 7.4(b) of this DPA, which concern transfers of Client Personal Data originating from the UK to a Third Country, if the Information Commissioner's Office (or its successor) provides an alternative or replacement recognized compliance standard for such transfers in accordance with the UK GDPR, to that already stated in this DPA. Protex AI will provide notice of such change in writing to the Client.

8. Data Subject Requests and Assistance

8.1. Notice of Requests. Protex AI will use reasonable efforts to promptly notify Client if it receives: (a) a request from a Data Subject to have access to that person's Personal Data; (b) a complaint or request relating to Client's obligations under the Data Protection Laws; or (c) any other communication relating directly or indirectly to the processing of any Personal Data in connection with the Agreement.

8.2. Protex AI Assistance. Considering the nature of processing and the information available to Protex AI, Protex AI will provide reasonable support to the Client in:

(a) complying with any legally mandated request for access to or correction of any Personal Data by a Data Subject under Chapter III of each of the GDPR Laws (and where such request is submitted to Protex AI, Protex AI will promptly notify Client of it);

(b) responding to requests or demands made to Client by any court or governmental authority responsible for enforcing the Data Protection Laws; and

(c) its preparation of a Data Protection Impact Assessment.

9. Personal Data Breach

9.1. Notice of Personal Data Breach. In the event that Protex AI suffers or becomes aware of a Personal Data Breach it will inform Client without undue delay, on becoming aware of the same, and will take reasonable steps to mitigate the effects and to minimize any damages resulting from such breach.

9.2. Information. In the event of a Personal Data Breach, Protex AI (to the extent reasonably possible), will provide the following information to Client:

(a) a description of the nature of the incident, including where possible the categories and appropriate number of Data Subjects concerned and the categories and approximate number of Personal Data records concerned;

(b) the name and contact details of the relevant Processor's data protection officer or another contact point where more information can be obtained;

(c) a description of the likely consequences of the incident; and

(d) a description of the measures taken and / or proposed to be taken by the relevant Processor to address the incident including, where appropriate, measures to mitigate possible adverse effects.

Protex AI may provide such information in stages, or further update it, as investigations progress.

10. Audit

10.1. Documentation. Protex AI agrees to maintain its ISO 27001 certification for the duration of the Term. Protex AI will use an external auditor to verify that its security measures meet ISO 27001 standards in accordance with the ISO certification process. On Client's written request, and subject to appropriate confidentiality obligations, Protex AI will provide to Client: (a) a copy of its then-current certificate in relation to its ISO 27001 certification; and (b) any information reasonably requested by Client concerning Protex AI's processing of Client Personal Data under the Agreement and this DPA.

10.2. Audit Scope. Other than in the context of investigating a Personal Data Breach involving Client Personal Data, Client agrees to exercise any right it may have to conduct an audit or inspection under Data Protection Laws (or the Standard Contractual Clauses, if applicable) by requesting the information outlined in Section 10.1 (Documentation). Client acknowledges that the Cloud Provider does not permit, and certain other of Protex AI's subprocessors may not permit, audits, in which case Client may refer to the information published by Cloud Provider or the relevant subprocessor concerning those entities' processing activities.

11. Data Return

11.1. Data Return. Client may download Client Personal Data manually or via the API at any time during the Subscription Term.

11.2. On Termination. On termination or expiry of the Agreement, Protex AI will retain Client Personal Data for a period of 30 days and shall thereafter delete all Client Personal Data in its and / or its sub-processors' possession or control. Client acknowledges that Protex AI will retain de-identified elements of Client Personal Data to improve its Offering pursuant to Section 5.3 (Improvements) of the Agreement.

12. Contact

12.1. Protex AI DPO. Protex AI's Data Protection Officer's information is: **Name:** Ciarán O'Mara, **Address:** Kilcaskin, Grange, Lisnagry, Limerick, V94 P2W1, Ireland, **Email:** privacy@protex.ai

Schedule 1 | TOMs

1. Technical Measures

1.1. Access Controls.

(a) Access to systems processing Client Data is restricted using role-based access control (RBAC).

(b) Administrative access is restricted to authorized personnel and protected using multi-factor authentication (MFA).

(c) Access permissions are reviewed regularly and revoked promptly upon role changes or termination.

1.2. Device-Level Processing and Protection.

(a) Client has the option to configure Protex AI Devices to apply irreversible anonymisation (*e.g.,* facial blurring or ghosting) to locally processed video feeds prior to data transmission to the Protex AI backend cloud infrastructure.

(b) Protex AI may temporarily process short video segments containing unblurred footage in the cloud for the sole purposes of: (i) quality assurance of event detection; and (ii) training machine learning models to detect general environmental features (*e.g.,* persons, objects, equipment) and fine tuning of such models. Such footage is not used to identify individuals. It is securely stored, access-controlled, and privacy features are applied (*e.g.,* facial blurring) as early as practicable during processing.

(c) Only short, event-based video clips and image frames are retained, encrypted using AES-256, and uploaded to the secure backend.

(d) Devices are deployed with outbound-only network configurations and do not accept inbound connections.

1.3. Encryption in Transit and at Rest.

(a) All Client Data in transit is secured using SSL/TLS encryption protocols.

(b) Client Data at rest, including video, metadata, and database records, is encrypted using AES-256 or equivalent.

(c) Encryption keys are managed via the Cloud Provider's key management service.

1.4. Network Security.

(a) AWS Web Application Firewall (WAF) and AWS Shield are deployed to protect against web threats.

(b) Security groups enforce a deny-by-default policy and restrict traffic to specific ports and IPs.

(c) Network architecture is segmented into public, private, and data subnets with no direct public access to sensitive components.

1.5. Identity and Session Management.

(a) Authentication supports both SAML and OAuth 2.0-compliant Identity Providers.

(b) Authentication tokens are short-lived and securely stored; session management is handled via AWS Cognito and Amplify.

(c) MFA is available through both Client IdPs and Cognito.

1.6. Authorization and Data Access Control.

(a) Permissions are enforced throughout the application using role-based access control.

(b) Backend and data layers restrict access down to row and column levels where applicable.

1.7. Monitoring, Logging and Retention.

(a) System access and activity are logged and monitored using AWS-native tooling.

(b) Default retention for Client Data is 30 days post-termination. Clients may download their Client Data manually or via the API at any time, and prior to closing their accounts.

(c) Secure deletion and erasure mechanisms are in place for expired or terminated data.

1.8. Backup & Disaster Recovery.

(a) Automated, encrypted backups are performed regularly to a separate region within the same country.

(b) Backup integrity is monitored; failures trigger alerts and incident responses.

1.9. Privacy By Design.

(a) Facial recognition is not used and footage is not used to identify individuals; unblurred footage is irreversibly anonymised as early as possible during processing.

(b) Metadata, rather than identifiable imagery, is leveraged for analytics.

(c) System design prioritises facility-level insights over individual identification.

2. Organizational Measures

2.1. Security Governance.

(a) Protex AI maintains an ISO/IEC 27001-certified Information Security Management System (ISMS).

(b) External audits are conducted to ensure ongoing compliance and effectiveness.

2.2. Confidentiality.

(a) Staff accessing Personal Data are subject to written obligations of confidentiality and background checks.

(b) Security training is mandatory during onboarding and conducted regularly thereafter.

2.3. Subprocessor Oversight.

(a) Subprocessors are reviewed for security and privacy compliance.

(b) Data Processing Agreements are in place to ensure adherence to relevant legal and contractual standards.

2.4. Incident Response.

(a) A structured incident response process is maintained for identifying, managing, and reporting Personal Data Breaches.

2.5. Data Subject Rights.

(a) Protex AI supports Clients in responding to data subject rights requests including access, correction, and deletion.

Schedule 2 | Approved Sub-Processors

#	Name	Data Processing Location	Description
1	Jira	EU	Project planning software for deployment; tracking and managing support requests
2	Amazon Web Services (AWS)	In Client's region (Site specific) - Ireland if EEA or UK, USA if USA, Singapore if APAC, Canada if Canada	Cloud infrastructure hosting Protex AI Platform backend infrastructure
3	Sunix	India	Event QA and annotation services
4	Cogiotech	India	Annotation services
5	Abelling	Bangladesh	Annotation services
6	Hevo	EU (Germany)	Data Warehouse Managed Service
7	Snowflake	In Client's region (Site specific) - Ireland if EEA or UK, USA if USA, Singapore if APAC, Canada if Canada	Data Warehouse Managed Service
8	Velaris	EU	CRM - Client Success
9	Encord	In Client's region (Site specific) - Ireland if EEA or UK, USA if USA, Singapore if APAC, Canada if Canada	Data labeling platform used for annotations
10	Crisp	EU	Client support request chat interface